

will or codicil executed after that date which would have been valid as a springing or shifting use or executory devise, or other limitation, had it not had a sufficient estate to support it as a contingent remainder, is in the event of the particular estate determining before the contingent remainder vests, to take effect as if it were a springing or shifting use, or executory devise or other executory limitation.

The effect of this enactment is to render contingent remainders independent of the determination of the particular estate in all cases in which the limitation would have been valid had it been a springing or shifting use, or an executory devise or other limitation; but where the limitation would have been void, as for instance for remoteness, had it been a springing or shifting use or an executory devise or other limitation, the remainder will still be liable to be defeated by the determination of the particular estate before it has become vested.

13. Legal limitations not construed as equitable in order to protect contingent remainders.—If an estate be devised to trustees and their heirs to certain uses, showing a clear intention on the part of the testator to create a succession of *legal* limitations, the Court will not hold the legal estate to be in the trustees merely because a different construction would leave the contingent remainders created by the devise unprotected by any particular estate (*b*).]

(*b*) *Cunliffe v. Brancker*, 3 Ch. D. 279; 5 Hare, 573; see *Marshall v. 393*; *Festing v. Allen*, 12 M. & W. 519; *Gingell*, 21 Ch. D. 790.